

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
LOVE OLATUNJI-OJO,

Plaintiff,

SUMMONS

Index #:

-against-

JURY TRIAL REQUESTED

Basis for Venue: location of incident in
Queens County.

THE CITY OF NEW YORK,
the NEW YORK CITY POLICE DEPARTMENT,
P.O. DANIEL P. CONNELLY, and
P.O. MATTHEW NEUBAUER.

Defendants.

-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: January 9, 2023



Nicholas Dayan, Esq.
Attorney at Law
80-02 Kew Gardens Rd, Suite 902
Kew Gardens, New York, 11415
(718)-268-9400

Service to:
See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
ONE CENTRE STREET
ROOM 1200
NEW YORK, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT
ONE POLICE PLAZA
NEW YORK, NY 10038

P.O. DANIEL P. CONNELLY, Shield No. 4212
ONE POLICE PLAZA
NEW YORK, NY 10038

P.O. MATTHEW NEUBAUER, Shield No. 16057
ONE POLICE PLAZA
NEW YORK, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
LOVE OLATUNJI-OJO,

Plaintiff,

VERIFIED COMPLAINT

Index #:

-against-

JURY TRIAL REQUESTED

THE CITY OF NEW YORK,
the NEW YORK CITY POLICE DEPARTMENT,
P.O. DANIEL CONNELLY, and
P.O. MATTHEW NEUBAUER.

Basis for Venue: location of incident in
in Queens County.

Defendants.

-----X

Plaintiff, by his attorney, NICHOLAS DAYAN Esq., as and for his Verified Complaint,
respectfully alleges, upon information and belief the following:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, Plaintiff LOVE OLATUNJI-OJO (“LOVE”) was and still is a resident of the County of Kings, State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK (“City”) was and still is a municipal corporation, duly organized and existing under and by virtue of the law of the State of New York.
3. That at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT (“NYPD”) was and still is a municipal corporation and/or municipal police department, duly organized and existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned Defendant P.O. DANIEL CONNELLY and P.O. MATTHEW NEUBAUER were agents, servants, and/or employees of Defendants City and NYPD; were members of the NYPD in the 103rd Police Precinct; and were acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of their employment for Defendants City and NYPD.
5. That at all times hereinafter mentioned, Defendants City and NYPD employed police officers and others hereinafter mentioned in this Complaint.
6. That at all times hereinafter mentioned, Defendants City and NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the Complaint.
7. That at all times hereinafter mentioned, all of the actions of the officers alleged herein were done within the scope and course of their employment with Defendants City and NYPD and under color of the state law.
8. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, Plaintiff served a Notice of Claim in writing upon the Defendant THE CITY OF NEW YORK. (See Exhibit A, Notice of Claim Confirmation).
9. That Plaintiff has filed a Notice of Claim with the New York City Comptroller and received confirmation of its receipt on September 23, 2022. (See Exhibit A).
10. That a 50-h hearing was held on 12/20/2022.
11. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the Plaintiff.

STATEMENT OF FACTS

12. On or about September 16, 2022, at approximately 12:30 AM, Plaintiff was driving his moped motorcycle down the street in Queens, New York.
13. As Plaintiff was driving his moped, approaching an intersection, Defendant P.O. DANIEL CONNELLY, with P.O. MATTHEW NEUBAUER in the passenger seat of the police vehicle, accelerated his police vehicle past a red traffic light, unexpectedly, recklessly, and negligently, with the intention of stopping Claimant, and caused Claimant to slam into the NYPD vehicle.
14. That the collision between Plaintiff and Defendants P.O. DANIEL CONNELLY and P.O. MATTHEW NEUBAUER was caused by the unexpected acceleration of Defendants' police vehicle past a red light and sudden stop of said vehicle directly in front of Plaintiff's moving moped motorcycle.
15. That on or about September 16, 2022, after the collision between Plaintiff and Defendants P.O. DANIEL CONNELLY and P.O. MATTHEW NEUBAUER, the NYPD unlawfully and wrongfully searched Plaintiff and arrested Plaintiff, handcuffing Plaintiff to his hospital bed.
16. That Plaintiff did not violate any law, rule, or regulation, or act in any way that would justify the actions of the NYPD and Defendant P.O. DANIEL CONNELLY, and Defendant P.O. MATTHEW NEUBAUER to stop Plaintiff the way that they did and/or jeopardize Plaintiff's life, safety, and wellbeing the way that they did.
17. That the Defendants acted with a knowing, willful, wanton, maliciousness, gross, negligent, reckless, unlawful, unreasonable, and/or flagrant disregard of Plaintiff's rights, privileges, welfare, safety, and wellbeing and are guilty of egregious and gross misconduct and/or negligence towards Plaintiff.

18. That by reason of the foregoing, Plaintiff has suffered extreme damages such as broken bones, burns, multiple surgeries, and tremendous levels of pain and suffering.

FIRST CAUSE OF ACITON
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION
UNDER NEW YORK STATE LAW

19. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above as if fully stated herein.
20. Defendants NYPD and City negligently hired, trained, supervised, and retained the Defendant officers; Defendant NYPD and City were careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers.
21. As a result of this negligent hiring, training, supervision, overseeing, and retention, Plaintiff has suffered and continues to suffer damages.

SECOND CAUSE OF ACITON
MONELL CLAIM PURSUANT TO 42 USC SECTION 1981, 1983, 1985, 1986
AND RESPONDEAT SUPERIOR

22. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above as if fully stated herein.
23. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the NYPD which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of Defendant NYPD.
24. Defendant NYPD, by their policy-making agents, servants and employers, authorized, sanctioned, and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

25. Defendants P.O. DANIEL CONNELLY and P.O. MATTHEW NEUBAUER used excessive force, and recklessly, and negligently caused Plaintiff's extreme damages and injuries by driving through a red light and stopping their vehicle directly in front of Plaintiff, not giving Plaintiff enough time to stop his vehicle.
26. Defendant NYPD has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable force for arrest.
27. Defendants detained, arrested, assaulted, battered, and victimized Plaintiff in the absence of any evidence of probable cause or reasonable to do so and/or search Plaintiff immediately following the accident, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, wellbeing, safety and constitutional rights.
28. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature.

THIRD CAUSE OF ACITON
MUNICIPAL AND/OR GOVERNMENTALL LIABILITY

29. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
30. That Defendant NYPD, its employees, agents, and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to properly train its employees, agents, and/or servants in proper procedures to stop vehicles without slamming right into them causing large accidents; and were otherwise reckless, careless, and negligent.
31. That as a result of the above referenced negligence and conduct of the NYPD, Plaintiff was caused to sustain physical, property, and emotional damages which exceeds the jurisdiction of all lower courts.

FOURTH CAUSE OF ACITON
EXCESSIVE FORCE

32. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

33. Plaintiff did not take any action necessitating the use of excessive force by Defendants P.O.

DANIEL CONNELLY and P.O. MATTHEW NEUBAUER.

34. That P.O. DANIEL CONNELLY and P.O. MATTHEW NEUBAUER did in fact use
excessive force against Plaintiff.

35. Indeed, Defendants P.O. DANIEL CONNELLY and P.O. MATTHEW NEUBAUER could
have waited for Plaintiff to drive by the intersection, drive behind Plaintiff with the police
sirens on and requested Plaintiff to pull over on the speaker.

36. Instead, however, Defendant P.O. Daniel P. Connelly ran a red light as he saw Plaintiff
driving towards the intersection (with the intention of stopping Plaintiff), abruptly stopped
midway in the intersection a mere and approximate three-four seconds before Plaintiff
crashed right into Defendants police vehicle.

37. That as a result of the foregoing, Plaintiff has suffered emotional, property, and physical
injuries. Plaintiff demands judgment against the Defendants in the amount which exceeds the
jurisdiction of all lower courts.

FIFTH CAUSE OF ACITON
INTENTIONAL AND/OR NEGLIGENTINFLICTION OF EMOTIONAL DISTRESS

38. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

39. Defendants intentionally and deliberately inflicted emotional distress upon Plaintiff;
Defendants negligently inflicted emotional distress upon Plaintiff; by maliciously,
negligently, recklessly, and/or intentionally causing the vehicle collision and resulting
injuries of Plaintiff.

SIXTH CAUSE OF ACITON
MALICIOUS PROSECUTION

40. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
41. That on or about September 16, 2022, after the accident between Plaintiff and Defendants P.O. DANIEL CONNELLY and P.O. MATTHEW NEUBAUER, one or more of the officers of the NYPD prepared formal accusatory instruments, with the knowledge that no crime or violation had occurred.
42. That one of or more than one of the Defendant officers unlawfully searched Plaintiff at the scene of the accident, prepared and filed charges against Plaintiff with malice and the intent of depriving Plaintiff of his liberty and right to not have his person searched, searched and seized Plaintiff knowing the NYPD had no probable cause or reasonable grounds to do so.
43. That Defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to control and supervise its employees, agents, and/or servants; failed to prevent the aforesaid injuries, pain and suffering, defamation, incarceration, and psychological injuries to the Plaintiff; and were otherwise reckless, careless and negligent.

SEVENTH CAUSE OF ACITON
NEGLIGENCE AND RESPONDEAT SUPERIOR

44. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.
45. The aforesaid Defendants, without cause or provocation, negligently, carelessly, and recklessly stopped Plaintiff, detained, and arrested Plaintiff.
46. Defendants owed Plaintiff a duty to act reasonably, breached said duty, and proximately and actually caused Plaintiff's damages resulting from said breach.

47. The police officers of the 103rd Police Precinct of the NYPD, including Defendant P.O.

Daniel P. Connelly acted negligently in stopping Plaintiff's moped in the way that they did, causing tremendous injury to Plaintiff that will diminish Plaintiff's quality of life, cause and has caused immeasurable pain and suffering, and amount to expensive medical treatment.

48. As employees acting in the scope of their employment of the NYPD and the City, P.O.

DANIEL CONNELLY's and P.O. MATTHEW NEUBAUER's actions impose liability on the NYPD and the City for their negligent conduct and Plaintiff is entitled to full compensation for his damages.

EIGHTH CAUSE OF ACTION
PUNITIVE DAMAGES

49. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

50. The acts, conduct, and behavior of the Defendants warrant an award of punitive damages against Defendants and in the favor of Plaintiff.

As a result of Defendants' actions and/or inactions, Plaintiff suffered damages.

WHEREFORE, Plaintiff respectfully demands judgment against Defendants, and each of them, on all of the foregoing causes of action in an amount equal to or greater than \$50,000,000, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, economic loss, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined at trial and by the trier of fact, together with attorney's fees, costs, and disbursements of this action.

Dated: 1/9/2023
Kew Gardens, New York

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Nicholas Dayan", is written over a horizontal line.

Nicholas Dayan, Esq.
80-02 Kew Gardens Rd. Suite 902
Kew Gardens, NY 11415
nicholasdayan@lawdayan.com
(718)-268-9400

VERIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF QUEENS)

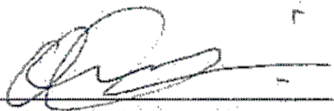
Kings

RE: LOVE OLATUNJI-OJO v. THE CITY OF NEW YORK, the NEW YORK
POLICE DEPARTMENT, P.O. DANIEL P. CONNELLY, and P.O. MATTHEW
NEUBAUER.

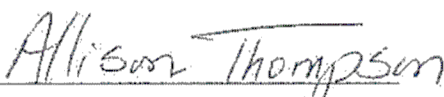
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LOVE OLATUNJI-OJO, being duly sworn deposes and says:

Deponent is a Plaintiff in the within action; he has read the foregoing and attached **Verified Complaint** knows the contents thereof and the same is true to deponent's own knowledge, except as to the matters herein stated to be alleged upon information and belief and as to those matters, she believes them to be true.


LOVE OLATUNJI-OJO

Sworn to before me this 9th
day of Jan, 2023


NOTARY PUBLIC

ALLISON THOMPSON
Notary Public - State of New York
No. 01TH6099607
Qualified in Kings County
My Commission
Expires Sept. 29, 20 23

Index. No.

Year 2023

SUPREME COURT OF THE STATE OF NEW YORK - COUNTY OF QUEENS

LOVE OLATUNJI-OJO,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DANIEL CONNELLY and P.O. MATTHEW NEUBAUER.

Defendants,

SUMMONS AND COMPLAINT**NICHOLAS DAYAN, ESQ.**

Attorney for Plaintiff

Love Olatunji-ojo

80-02 Kew Gardens Road

Kew Gardens, New York 11415

(718) 268-9400

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the court of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated:

Signature

Print Signer's Name ...ALBERT Y. DAYAN.....

Service of a copy of the within

is hereby admitted

Dated:

.....
Attorney(s) for**PLEASE TAKE NOTICE**

NOTICE OF ENTRY that the within is a (certified) true copy of a
entered in the office of the clerk of the within name Court on

20

NOTICE OF SETTLEMENT that an Order of which the within is a true copy will be presented for settlement to the
Hon. one of the judges of the within named Court,
at
on 20 , at M.

NICHOLAS DAYAN, ESQ.

Attorney for Plaintiff

80-02 Kew Gardens Road, Ste. 902

Kew Gardens, New York 11415